



POLICE DEPARTMENT

April 23, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 202311282 (Incident Date: October 27, 2023) regarding Police Officer Brandon Bacalles, Tax No. 973235 (PODS Case No. C-033506)

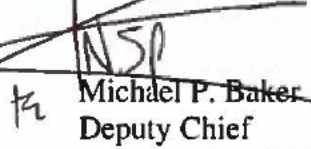
Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the substantiated allegation of an improper frisk against Police Officer Brandon Bacalles.

In this matter, Officer Bacalles responded to a 911 call of a burglary in progress where the suspect pushed past the caller and broke into her home. When Officer Bacalles arrived at the location, he observed an individual inside the apartment matching the description of the suspect. Officer Bacalles immediately frisked the individual and, after conducting an investigation, determined that it was a domestic dispute and not a burglary. The Police Commissioner has reviewed the facts and circumstances of this case and determined that Officer Bacalles had sufficient legal authority to frisk the individual he reasonably suspected to have committed a violent crime. Yet, because Officer Bacalles conducted that frisk, he should have offered a Right to Know-business card to the individual.

Therefore, based on the above, and the totality of the circumstances, no disciplinary action will be imposed against Officer Bacalles for the improper frisk allegation. However, Officer Bacalles will receive a Schedule "A" Command Discipline, with the forfeiture of one vacation day, for the substantiated allegation of failure to offer/provide a business card.

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>